

		Plaintiff contends that evidence of Defendants' financial condition is essential to enable the court to determine an appropriate punitive damages award at the default judgment or prove-up hearing. Without access to financial information, the Court would be required to speculate as to Defendants' net worth, frustrating the deterrent and punitive purposes of Civil Code section 3294. The motion has not been opposed by Defendants, and they have failed to present evidence disputing that it is likely Plaintiff will prevail on its claim for punitive damages. Accordingly, the motion is GRANTED. Plaintiff is permitted to engage in pretrial discovery of Defendants' financial condition pursuant to Civil Code § 3295(c). The OSC re: Dismissal hearings are continued to December 17, 2026, at 9:30 a.m. in Department C12. Plaintiff Moving Party to give notice.
3.	Reichert vs. Farris 25-01479895	1. Motion for Sanctions 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Special Interrogatories 4. Motion to Compel Production 5. Motion to Compel Response to Requests for Admissions ALL MOTIONS CONTINUED. See ROA 133
4.	Cho vs. American Honda Motor Co., Inc. 25-01452448	Motion for Discovery Sanctions <u>Plaintiff's Continued Motion for Discovery Sanctions</u> Plaintiff Kyung Ho Cho's Motion for Discovery Sanctions was originally heard on 5/1/26. On the day before the original hearing date, Defendant made some effort to comply with the court's 10/3/25 order compelling Defendant to provide further responses to Plaintiff's Request for Production of Documents, request Nos. 7, 8, 17, 19, 20, 41, 52, 53, 54, 56, and 57. The Court continued this hearing, as it appeared the parties could possibly resolve this dispute if given further opportunity to meet and confer. To the Court's disappointment, and based upon Plaintiff's meet and confer statement, filed on 5/29/26, it appears that nothing has been

		resolved, and Defendant could not be relied on to fulfill its discovery obligations. (See Plaintiff's Statement filed May 29, 2026, as ROA 67). Plaintiff has identified several deficiencies in Defendant's supplemental responses. To the extent Plaintiff contends Defendant's supplemental responses are deficient, Plaintiff may move for an order compelling further responses. The deficiencies Plaintiff identifies do not warrant a drastic remedy such as issue sanctions, evidentiary sanctions, or terminating sanctions. (see <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 991-992; <i>Caryl Richards, Inc. v. Superior Court</i>, 188 Cal.App.2d 300, 303.) Within 30 days of this ruling, Defendant American Honda Motor Co., Inc. shall pay monetary sanctions in the amount of \$1,875 to Plaintiff. Any further failure to comply with the Court's discovery orders could result in further monetary sanctions, issue sanctions, evidentiary sanctions, or even terminating sanctions. Plaintiff shall provide notice.
5.	Ratzlaff vs. Unique Outdoor Designs, LLC 20-01159991	1. Motion for Sanctions 2. Motion to Be Relieved as Counsel of Record Defendant In Intervention, Scottsdale Insurance Company's motion for terminating sanctions is DENIED. This Court takes the position that in most cases of purported spoliation, facts should be decided and appropriate inferences made by the trier of fact after a full hearing at trial, rather than imposing non-monetary sanctions on a pretrial motion. <i>New Albertsons, Inc. v. Superior Court</i> (2008) 168 Cal.App.4th 1403. Evidence Code section 413 permits the trier of fact to consider a party's willful suppression of evidence when determining what inferences to draw. Terminating sanctions are not statutorily mandated even in the face of willful discovery misconduct. <i>Higginson v. Kia Motors America</i> (2026) 118 Cal.App.5th 316. While denying the motion, it is without prejudice to Scottsdale presenting evidence and argument concerning the issue of destroyed cores to the trier of fact at trial. Scottsdale to give notice of this ruling.